DERRICK CAMONT BEVERLY
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FILED
Superior Court of California
County of Los Angeles

OCT 17 2025

David W. Slayton, Executive Officer/Clerk of Court
By: C. Cervantes, Deputy

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES

FOX NORMANDIE APARTMENTS, LP
Plaintiff,

vs.

DERRICK L. BEVERLY
Defendant(s)

Case No.: 22STUD06057

- Ex Parte Application

1.) Violation of Due Process Fourteenth Amendment

2.) Lack of Judicial Assignment

Dept: 91
Time: 1:30 p.m.
10/17/2025

3.) Judicial Misconduct + Abuse of Discretion

4.) Violation of Equal Protection (U.S.) Const. Amend XIV

5.) Fraud upon the court/Extrinsic Fraud (CCP §473(d))

6.) Negligence (Civ. Code §1714)

7.) Breach of Statutory Duty - Tenant Relocation (LAMC §§8.52.090 - 8.52.130)

8.) Wrongful Eviction/Unlawful Displacement (Gov. Code §7060 et seq. - Ellis Act Misuse)

9.) Intentional Infliction of Emotional Distress (Hughes v. Pair)

10.) Injunctive Relief (CCP §526)

11.) Declaratory Relief (CCP §1060)

12.) RICO Violation (18 U.S.C. §§ 1962(c), (d))

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13.) Civil Conspiracy to Deprive Rights

14.) Failure to provide Reasonable Accommodation (42 U.S.C. § 12132; Gov. Code § 12927)

15.) Constructive Fraud & Misrepresentation (Civ Code §§ 1572, 1709)

16.) Punitive Damages - Oppression, Fraud, Malice

17.) Violation of Civil Code §§ 3281-3333 (Compensatory Damages

18.) Retaliation (Civ. Code § 1942.5)

19.) Violation of Tenant Protections Under L.A. County COVID-19 Tenant Relief Ordinance

20.) Judicial Misconduct and Structural Due Process Violation (California Constitution, Article VI § 6(e); Code Civ. Proc. § 473(d); 42 U.S.C. § 1983)

21.) Motion for Reconsideration

Please accept this re-application for ~~Emergency~~

Derrick de Montebello
(323) 387-6873

10/17/2025